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MOTION

FOR SUMMARY ADJUDICATION

The Court

tenders the following tentative decision in the matter Arturo Herrera, Jr., et al. v. Ford Motor Company, et al., Los Angeles County Superior Court case number 24STCV32278, set for hearing on July 23, 2026. Ford Motor Company (Defendant) moves for summary adjudication as to Arturo Herrera, Jr. and Norayda Herrera's (Plaintiffs) fifth and sixth causes of action. Plaintiffs oppose summary adjudication. The motion is granted.

A.

Legal

Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party can show evidentiary support for a claim or defense and if not to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure Section 437c, subdivision (c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

As to each claim as framed by the complaint, a moving defendant "has met that party's burden of showing that a cause of action

has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389 (Dore).) Once the defendant has met that burden, the burden shifts to the opposing plaintiff “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

B. Discussion

Defendant moves for summary adjudication as to Plaintiffs’ fifth cause of action for negligent repair and sixth cause of action for fraudulent inducement of contract through concealment. The Court will address each cause of action in turn.

Defendant is entitled to summary adjudication as to Plaintiffs’ fifth cause of action for negligent repair.

Defendant argues that it is entitled to summary adjudication as to Plaintiffs’ fifth cause of action because it is barred by the economic loss rule. Under the economic loss rule, tort recovery for breach of a contract duty is generally barred. (Rattagan v. Uber Technologies Inc. (2024) 17 Cal.5th 1, 20 (Rattagan).) A plaintiff may still bring a tort action if they “demonstrate the defendant’s injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract” and that “defendant’s conduct . . . caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed.” (Id. at pp. 20–21.)

Here, Plaintiffs’ negligent repair cause of action is essentially a common law negligence claim against the defendant which failed to repair Plaintiffs’ vehicle. (Compl. ¶¶ 60–62.) Plaintiffs allege that their negligent repair cause of action arises out of

Defendants' warranty obligations based on the written warranty issued with the subject vehicle. (Id. ¶ 11.) Plaintiffs further allege a duty by Defendants to repair the subject vehicle in accordance with industry standards. (Id. ¶ 60.) But Plaintiffs have not presented evidence showing any duty separate from the duties arising out of the warranty agreement. (Plaintiffs' Separate Statement (PSS) ¶¶ 21–22.) Thus, the economic loss rule applies, and Defendant has met its burden of showing that Plaintiffs cannot prove their fifth cause of action as a matter of law.

Plaintiffs cite no evidence raising any triable issue of material fact. Indeed, they merely refer to the lack of any evidence as disputed without citing any materials in the record. (Ibid.) Rather, Plaintiffs argue that damage to the entire subject vehicle from a single defective component allows for liability under a negligent repair theory pursuant to *Jimenez v. Superior Court* (2002) 29 Cal.4th 473, 483–484. But such a theory requires evidence that Defendant damaged the relevant component while repairing it, whereas here Plaintiffs instead provide evidence that the component was damaged or defective at the time of sale. Thus, the economic loss rule applies and Plaintiffs have not presented any triable issues of material fact to defeat its application. Accordingly, Defendant's motion for summary adjudication is granted as to Plaintiffs' fifth cause of action.

Defendant is entitled to summary adjudication as to Plaintiffs' sixth cause of action for fraudulent inducement via concealment.

Defendant argues that it is entitled to summary adjudication as to Plaintiffs' sixth cause of action for fraudulent inducement of contract through concealment. "The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact." (*Rattagan*, supra, 17 Cal.5th at p. 40.) A duty to disclose a material fact arises in multiple situations: (1) if it is imposed by statute; (2) if the defendant is acting as the plaintiff's fiduciary or is in some other confidential relationship; (3) if the material facts are only known or accessible to the defendant and they know that plaintiff may not easily

discover them; (4) if the defendant discloses some facts but fails to disclose others; or (5) if the defendant actively conceals material facts from the plaintiff. (Ibid.) Situations 3, 4, and 5 “presuppose a preexisting relationship between the parties,” and a transaction creating such a relationship must “arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Id. at pp. 40–41.)

Specifically,

Defendant argues that Plaintiffs’ claim is barred by the economic loss rule and that Plaintiff has not presented evidence creating a duty to disclose or showing that Defendant was aware of the relevant defect when it sold the vehicle. First, with respect to the economic loss rule, a plaintiff may still bring a tort action if they “demonstrate the defendant’s injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract” and that “defendant’s conduct . . . caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed.” (Rattagan, *supra*, 17 Cal.5th at pp. 20–21.) However, as noted by the Court in Rattagan, fraudulent inducement “is not a context where the ‘traditional separation of tort and contract law’ obtains.” (Id. at p. 41.) Thus, Plaintiffs’ claim is not barred by the economic loss rule.

Next,

Defendant argues that it is entitled to summary adjudication because Plaintiffs did not produce evidence of a sufficient relationship between the parties required under Rattagan. Where no fiduciary or confidential relationship exists between the parties, a plaintiff must show a relationship through some transaction. (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310–311.) Having satisfied its initial burden, Plaintiffs must demonstrate the existence of some triable issue of material fact. Here, Plaintiffs present evidence that they purchased the subject vehicle with Defendant’s express written warranties. (Compl., Ex. A.) Parties entering into a contractual agreement are parties to a transaction, “from which a duty to disclose facts material to the transaction arises under certain circumstances.” (Rattagan, *supra*, 17 Cal.5th at p. 41; see Dhital v. Nissan North America (2022) 84 Cal.App.5th 828, 844 [holding that a car manufacturer’s express warranty created a transactional relationship requiring the disclosure of known defects].) Thus, Plaintiffs have demonstrated a triable issue of material fact as to whether Defendant owed a duty to disclose based on the warranty agreement

under Rattagan even if Defendant did not directly sell Plaintiffs the subject vehicle.

Finally,

Defendant contends that Plaintiffs cannot show it was aware of the defect in the subject vehicle at the time of sale or that it was unwilling or unable to fix the defect. If Plaintiffs lacked such evidence, they would be unable to show that Defendant concealed or suppressed a material fact. Thus, Defendant has met its initial burden once again of demonstrating that Plaintiffs' sixth cause of action lacks merit. Plaintiffs point to exhibits in their request for judicial notice showing that Defendant was in fact aware of the relevant transmission defect. (RJN, Exs. 1–18.) But these exhibits are not properly subject to judicial notice as facts not reasonably subject to dispute; rather, they constitute internal documents of Defendant that should instead be offered into evidence. In fact, Plaintiffs do not point to any admissible evidence establishing a triable issue of material fact with respect to Defendant's knowledge of the relevant defect. Accordingly, Plaintiffs have failed to meet their burden and summary adjudication is granted with respect to their sixth cause of action as well.

Conclusion:

Defendant's motion for summary adjudication is granted.